# RE062 - Allergen Regulation Research

## Introduction

Food allergen labeling is critical for protecting consumers with allergies and ensuring compliance with regional food safety regulations. This report summarises mandatory allergens, disclosure requirements, and regional differences in allergen labeling standards across Australia, the European Union (EU), and the United States (US). The purpose is to guide Food Remedy in maintaining compliance and accuracy in its food product labeling and communications.

## Australia Allergen Labeling Standards

Australia's allergen labeling is regulated by the Australia New Zealand Food Standards Code, with significant updates implemented under the Plain English Allergen Labelling (PEAL) laws starting 25 February 2024 (Food Standards Australia New Zealand [FSANZ], 2022a; FSANZ, 2022b).

## Mandatory Allergens

Food products must declare the presence of the following allergens if used as ingredients, additives, or processing aids:

- Peanuts
- Specific tree nuts: almond, Brazil nut, cashew, hazelnut, macadamia, pecan, pine nut, pistachio, walnut
- Egg
- Milk (including all dairy sources)
- Fish
- Crustacea (e.g., prawns, lobster)
- Molluscs (e.g., squid, mussels)
- Sesame seeds
- Soy/soybeans
- Cereals containing gluten (wheat, rye, barley, oats, and related grains)
- Lupin
- Sulphites at or above 10 mg/kg

## Disclosure Rules

- Allergens must appear in **bold** in the ingredient list next to the allergic ingredient and in a separate allergen summary statement starting with “contains.”
- The old practice of generic terms such as “tree nuts” or “cereals containing gluten” is no longer permitted; labeling must specify the exact allergen name (e.g., cashew, wheat).
- Fish, crustacea, and molluscs must be labeled separately.
- Retailers fulfilling food service (cafés, restaurants) are not required to label packaged allergens but must provide allergen information upon request (FSANZ, 2022a; Food Allergy Aware Australia, 2023).

## Compliance Considerations

- PEAL requirements are mandatory for food packaged after 25 February 2024. Products packaged before this date can be sold until 25 February 2026 under old standards (FSANZ, 2022a).
- Food Remedy must update labels to comply with these new clear and consistent allergen declarations to avoid regulatory penalties and protect consumers.

## European Union Allergen Labeling Standards

The EU regulates allergen labeling under Regulation (EU) No 1169/2011, effective since December 2014, commonly known as the Food Information to Consumers Regulation (European Food Safety Authority [EFSA], 2014; Manchester Food Allergen Research, 2025).

## Mandatory Allergens

The EU list includes 14 allergenic foods or groups thereof:

- Cereals containing gluten (wheat, rye, barley, oats)
- Crustaceans
- Eggs
- Fish
- Peanuts
- Soybeans

- Milk (including lactose)
- Nuts (including almond, hazelnut, walnut, cashew, pecan, Brazil nut, pistachio, macadamia)
- Celery
- Mustard
- Sesame seeds
- Sulphur dioxide and sulphites (>10 mg/kg or mg/l)
- Lupin
- Molluscs

## Disclosure Rules

- Mandatory allergens must be emphasised in the ingredients list—typically by font style, size, or background color—to ensure clear visibility.
- Allergen information is required for both prepacked and non-prepacked foods, including at restaurants and catering services.
- Online sales have the same labeling obligations as physical retail.
- The labeling of ingredients must specify allergenic foods, including in compound ingredients and processing aids (Manchester Food Allergen Research, 2025).

## Precautionary Allergen Labeling (PAL)

- PAL or “may contain” statements are voluntary and not harmonised across the EU; some countries use the VITAL program for risk assessment but it is not legally binding (EFSA, 2014).

## Compliance Considerations

- Food Remedy should ensure that all allergens listed in Annex II of the regulation are clearly and visibly labeled.
- Awareness of national guidelines related to PAL is recommended when distributing in different EU member states.

## United States Allergen Labeling Standards

The US allergen labeling law is governed by the Food Allergen Labeling and Consumer Protection Act (FALCPA) of 2004, enforced by the Food and Drug Administration (FDA), effective from 2006. The FDA updated guidance was issued as recently as January 2025 (FDA, 2025; Sicherer et al., 2020).

## Mandatory Allergens

The US mandates labeling of eight major food allergens plus sesame as the ninth (effective 2023):

- Milk
- Eggs
- Fish (specific species named)
- Crustacean shellfish (named species)
- Tree nuts: almond, black walnut, Brazil nut, California walnut, cashew, filbert/hazelnut, heartnut, macadamia, pecan, pine nut, pistachio, English/Persian walnut (excluding coconut and some others)
- Peanuts
- Wheat
- Soybeans
- Sesame

## Disclosure Rules

- Allergens must be declared either immediately following the allergenic ingredient name in parentheses or in a “Contains” statement placed after the ingredient list.
- Labels must specify the type of nut, fish, and crustacean shellfish.
- Molluscan shellfish (oysters, clams, mussels, etc.) are not currently regulated as major allergens under FALCPA (FDA, 2025; Sicherer et al., 2020).

## Compliance Considerations

- Food Remedy must adopt clear labeling practices consistent with FALCPA to avoid legal risk.
- The inclusion of sesame as a mandatory labeled allergen must be ensured on US-targeted packaging.
- Monitoring FDA updates is advised, as regulations and guidance continue to evolve.

## Summary of Key Differences

| Feature | Australia | European Union | United States |
|---|---|---|---|
| Number of Mandatory Allergens | 12 allergens + sulphites | 14 allergens (+ sulphites) | 9 allergens (added sesame recently) |
| Allergen Listing Format | Plain English, allergen name in bold | Emphasis by font/background in ingredients list | Allergen name in ingredient list or "Contains" statement |
| Specificity of Allergen Names | No generic "tree nuts" allowed; specific nuts listed | Specific nuts listed, plus some other allergens like celery, mustard | Specific nuts named; excludes some tree nuts like coconut |
| Labeling for Non-Prepacked Foods | Info provided on request; no label req | Mandatory allergen info for restaurants and non-prepacked foods | Not regulated for non-packaged food but disclosure encouraged |
| Precautionary Allergen Labeling | Not regulated nationally | Voluntary, various national schemes, VITAL common | No official PAL regulation; advisory only |

## Recommendations for Food Remedy

1. **Update and standardise allergen labeling** on all products to meet the latest PEAL requirements for Australia by 25 February 2024.
2. **Comply with EU labeling requirements** especially visibility of allergens and maintain awareness of PAL guidelines where applicable.
3. **Ensure FALCPA compliance** in the US market, including the recent addition of sesame and specific tree nut requirements.
4. **Monitor regulatory updates regularly** to maintain compliance across all regions.

5. Implement robust staff training and product formulation checks to prevent undeclared allergens and cross-contamination.

## References


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